

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2024-CC-003692

JACQUELINE E. STEPHENS, DAVID JACKSON
AMYX, DEBORAH AMYX, PHILIP A. MUNDY
and ANY UNKNOWN PARTY(s) IN POSSESSION,
Defendants.

MOTION FOR DEFAULT JUDGMENT

COMES NOW, the Plaintiff, by and through the undersigned counsel and moves this Honorable Court to grant a default final judgment against the defendants and granting to the Plaintiff possession of the premises pursuant to Fla. Stat. §723.061 and states:

1. Plaintiff has brought an action against the Defendants for a writ of possession for the premises: 900 9th Avenue East, Lot 108 of Colonial Manor Mobile Home Park, for their failure to comply with the rules and regulations of Colonial Manor Mobile Home Park, pertaining to allowing unauthorized persons to reside on the premises.
2. Specifically, the Defendants are accused of allowing additional occupants, not approved by park management, to reside with them in the premises of the mobile home on Lot #108.
3. This conduct is in violation of Rule 3 of Colonial Manor Mobile Home Park.
4. The Plaintiff complied with its statutory obligation to notify the Defendants of the violation of the rules, with specificity, how to come into compliance with the rules, that is, removing persons from Lot 108 so that there are not more than three persons residing in the lot, which persons must all be approved by the park to reside in the park after application.
5. Plaintiff advised the Defendants that if they continued to violate the rule regarding unauthorized tenants (and their conduct in allowing unapproved tenants on the premises) that their right to reside at the premises would be terminated.

6. The Defendants continued to violate the same rules, after being notified of their obligation to cure the rule violations.
7. As a result, the Plaintiff terminated the right of the Defendants to reside on the premises.
8. Defendants Jacqueline Stephens filled a response to the Complaint, but did not comply with the other requirement of the summons (and the operative law, that is, to pay into the Registry of the Court the rent which the Court set for hearing on For the Defendants to be permitted to present their defenses to the Plaintiff's Complaint, the Defendants are obligated to pay rent into the Registry of the Court pursuant to Fla. Stat. §723.063 (2); failure to pay rent into the Registry of the Court constitutes a waiver of all of the Defendants' claimed defenses.
9. The summonses in the above styled cause served upon the Defendants clearly state the obligations of the Defendants to, in addition to filing a document with the court stating why they should not be removed from the premises, but also obligating them to pay rent into the Registry of the Court. The summonses and returns of service are attached to this Motion and identified as Composite Exhibit A.
10. The Defendants owe rent for the months of October and November of 2024 in the amount of \$1,529.58 and, if the case is not resolved by the end of November, 2024, December of 2024, which is as follows:

 \$764.79 for October 2024

 \$764.79 for November 2024

 \$764.79 for December 2024

which is the sum of \$2,294.37, not including late fees or water.
11. In any action by the park owner or a mobile home owner brought under subsection (1), the mobile home owner shall pay into the registry of the court that portion of the accrued rent, if any, relating to the claim of material noncompliance as alleged in the complaint, or as determined by the court. The court shall notify the mobile home owner of such requirement.

The failure of the mobile home owner to pay the rent, or portion thereof, into the registry of the court as required herein constitutes an absolute waiver of the mobile home owner's defenses other than payment, and the park owner is entitled to an immediate default. Fla. Stat. Ann. § 723.063.

Fogelman vs. MHC Eldorado Village, LLC, 23 Fla. L. Weekly Supp 668b (Circuit Court, 6th Judicial Circuit, Pinellas County, UCN 522015AP000035XXXXCI October 15, 2015), in a Chapter 723 eviction for failure to be approved for residency eviction, and Abramski v. Paradise Park Co-op, Inc., 19 Fla. L. Weekly Supp. 178a (Circuit Court, 6th Judicial Circuit, Pinellas County, UCN 52201AP0000017XXXXCV November 22, 2011) are both cases in which Fla. Stat. §723.063 have been applied to pre-trial rent payment requirements.

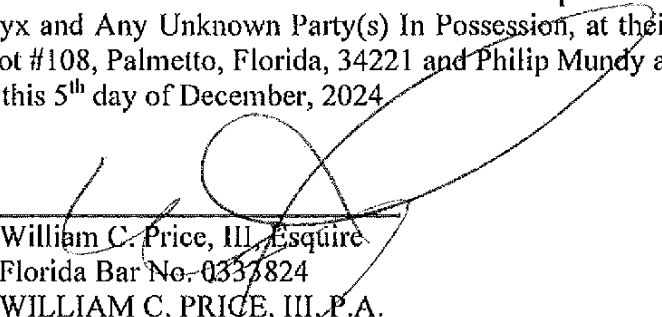
12. No other defendants have filed any answer to the Complaint nor paid money into the Registry of the Court.

13. The Court has set a hearing on the Defendant's answer for December 11, 2024 at 1:30 p.m., but the Defendant has continued to fail to pay any rent into the Registry of the Court.

WHEREFORE, Plaintiff asks this Court to grant a writ of possession of the premises to the Plaintiff after the passage of ten days pursuant to Fla. Stat. 723.062 (1). A judgment for possession is submitted in Word and the Proposed Order incorporated herein as **Exhibit B**.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Motion for Default Judgment and for Payment of Rent into Registry of Court has been furnished via First Class U.S. Mail to Jacqueline E. Stephens, David Jackson Amyx, Deborah Amyx and Any Unknown Party(s) In Possession, at their last known address of 900 - 9th Avenue East, Lot #108, Palmetto, Florida, 34221 and Philip Mundy at 9618 State Route 269, Bellevue, OH 44811 on this 5th day of December, 2024.



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